RE: ODC File No. 26-145 — Request for Written Facts and Reasons Supporting Dismissal

From Pam Bucy [redacted]

To Elvis Nuno <e[redacted]roadwater <[redacted]
JUD Commission on Pra[redacted]

Date Thursday, November 5th, 2026 at 08:14

Mr. Nuno,

Our dismissal correspondence explained our reasoning for dismissal. You will not be receiving any additional information from us regarding our work. Your next available remedy is an appeal to the Supreme Court. You can raise your issues with them as Ms. Broadwater explained. Please refrain from further correspondence with us. Thank you.

Pamela D. Bucy

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> **From:** Elvis Nuno[redacted]
> **Sent:** Wednesday, November 4, 2026 1:34 PM
> **To:** Pam Bucy[redacted]a Broadwate[redacted]
> Commission on Practice [redacted]
> **Subject:** ODC File No. 26-145 — Request for Written Facts and Reasons Supporting Dismissal
>
> Ms. Broadwater and Ms. Bucy,
>
> Commission on Practice:

Allow me to clarify the specific basis of my request so that there is *no* confusion. I am not asking ODC to agree with me, provide an advisory ethics opinion, or repeat the instructions for seeking further review. I am asking ODC to identify the written statement of facts and reasons supporting dismissal of my grievance against Brian C. Lowney, ODC File No. 26-145.

The Montana Rules for Lawyer Disciplinary Enforcement expressly address this obligation:

- Rule 5B(10) directs Disciplinary Counsel, where it dismisses a matter, to “provide a concise written statement of the facts and reasons a matter has been dismissed.”

- Rule 10C(2), titled “Notice of Disposition,” requires written notice of dismissal “stating the reasons for the action taken” and advising the complainant of the right to request review.

These provisions distinguish between explaining the reasons for dismissal and advising a complainant how to seek review. Providing review instructions does not, by itself, answer my request for the factual and substantive basis of the dismissal.

I recognize that Rule 10C(1)(b) permits dismissal with or without some or all of the investigative steps described in Rule 10C(1)(a). I am therefore not asserting that every grievance requires witness interviews, a complete investigative report, or any particular investigative procedure. Nor am I asserting an automatic entitlement to every internal document or a separate answer to every legal question I have raised.

My request is narrower: please identify the written explanation contemplated by Rules 5B(10) and 10C(2).

Specifically:

1. Please identify the document and relevant passage that state the facts and reasons supporting dismissal of ODC File No. 26-145.

2. If that explanation appears in a document separate from the correspondence already provided, please send me an electronic copy.

3. If ODC considers the existing dismissal notice sufficient, please identify the language that supplies the factual basis and reasons for dismissing my allegation concerning prosecutorial leniency allegedly conditioned on removing or refraining from constitutionally protected speech.

4. If no further written explanation exists, please state that directly and explain how ODC considers the explanation already supplied to satisfy these provisions.

My concern is not resolved by characterizing it as disagreement with the outcome. I am trying to understand what factual determination and reasoning produced that outcome. Likewise, a reference to “strategy,” without explaining how that characterization resolves the conduct alleged in this grievance, does not tell me what facts were accepted, rejected, or considered insufficient, or why dismissal followed.

I am not asking for a lengthy opinion. I am asking for the concise statement of facts and reasons that the rules expressly contemplate.

Please respond to this request directly and send any responsive correspondence electronically. This request for clarification is separate from any request for further review; I am not treating it as an extension of an applicable deadline.

Sincerely,

Elvis Nuno

Sent with Proton Mail secure email.